

25CV04624 Andrea Vicars v. Marborg Industries, et al.

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-05-13

Motion: Plaintiff's Motion for Protective Order Re Special Interrogatories and Request For Production Of Documents Propounded By Defendant

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Tentative Ruling: Andrea Vicars v. Marborg Industries, et al.

Case Number

25CV04624

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 05/13/2026 - 10:00

Nature of Proceedings

Plaintiff's Motion for Protective Order Re Special Interrogatories and Request For Production Of Documents Propounded By Defendant

Tentative Ruling

For Plaintiff Andrea Vicars: R. Chris Kroes, McCarthy & Kroes

For Defendants Marborg Industries and Homero Vences: Maryam Danishwar, Jonathan Semerjian, Clark Hill LLP

RULING

For the reasons stated herein, the motion of Plaintiff for a protective order re special interrogatories and request for production of documents propounded by Defendant Marborg Industries is granted, in part as to Defendant's amended set one special interrogatory nos. 1, 9 through 14, 16 through 29, 49, and 50; and Defendant's amended set one requests for

production of documents and other things nos. 6 (in part and in accordance with this ruling), 11 through 17, 19, 21, and 36 through 39. Except as herein granted, the motion is otherwise denied. Plaintiff shall submit, for the Court's signature, a proposed order that conforms to the ruling herein.

The trial date of 11/25/26 is confirmed – again.

Background

As alleged in the complaint of Plaintiff Andrea Vicars:

On April 17, 2025, Marborg Industries (Marborg) came to 850 Clark Road in Santa Barbara, California, to pick up a dumpster. (Complaint, ¶¶ MV-1, MV-2(f) & GN-1.) During the pickup, the 10,000 pound steel dumpster rolled down the driveway and crashed into Plaintiff's Mercedes Sprinter van, which then was pushed back and into Plaintiff's Lexus, causing significant damage to both vehicles. (Complaint, ¶ MV-2(f) & GN-1.)

On July 24, 2025, Plaintiff filed their complaint against Defendants Marborg and Homero Vences, alleging two causes of action: (1) motor vehicle; and (2) general negligence.

On November 26, 2025, Marborg filed an answer to the complaint, generally denying its allegations and asserting thirty-five affirmative defenses.

On December 23, Plaintiff filed a motion for a protective order (the protective order motion) limiting Marborg's special interrogatories to the number permitted by code; limiting Marborg's discovery requests to those which are relevant and do not violate Plaintiff's right to privacy, and precluding Marborg from propounding discovery seeking information regarding personal injuries, emotional distress, financial information, cell phone data, and social media information; limiting Marborg's request for production of documents to those for which good cause is shown; and requiring Marborg to withdraw its declarations for additional discovery. The motion seeks an award of monetary sanctions against Marborg and its counsel of record.

Marborg filed an opposition to the protective order motion, which was calendared for hearing on March 18, 2026.

On February 17, 18, and 19, 2026, Plaintiff filed, respectively, a motion for an order (the FI Motion) compelling Marborg to provide further responses to Plaintiff's set one form interrogatories (the FI); a motion for an order (the RFA Motion) compelling Marborg to provide further responses to Plaintiff's set one request for admissions (the RFA); and a motion for an order (the RFP Motion) compelling Marborg to provide further responses to Plaintiff's set one requests for production of documents (the RFP). Each of those motions sought an award of monetary sanctions against Marborg and its counsel.

The RFA Motion was calendared for hearing on March 18, 2026. The FI Motion and the RFP Motion were calendared for hearing on April 8, 2026.

On March 11, Defendant Vences filed an answer to the complaint, generally denying its allegations and asserting thirty-five affirmative defenses.

On March 18, the Court continued Plaintiff's motion for a protective order and the RFA Motion to April 8, to be heard with the FI Motion and the RFP Motion.

Marborg did not file an opposition to the RFA Motion, the FI Motion, or the RFP Motion (collectively, the Discovery Motions) with the Court.

On April 8, after a hearing, the Court issued a minute order (the Order) adopting its tentative ruling granting the Discovery Motions; ordering Marborg to serve verified, code compliant further responses to certain FI, RFA, and RFP without the overruled objections; and awarding monetary sanctions in favor of Plaintiff and against Marborg.

As to Plaintiff's motion for a protective order (the motion or present motion), the Order states:

"The undisputed available information and evidence shows that on November 26, 2025, Marborg served Plaintiff with special interrogatories which are numbered set one and begin with special interrogatory no. 1, and with requests for production of documents and other things which are numbered set one and begin with request for production no. 1. (Kroes Dec., exhibits B1-B2.) The undisputed present record also shows that on December 3, 2025, Marborg served Plaintiff with amended special interrogatories (the Marborg SI) which are also numbered set one and begin with special interrogatory no. 1, and an amended request for production of documents and other things (the Marborg RFP) which is numbered set one and begins with request for production no. 1. (Kroes Dec., exhibits D1-D2.)

As a threshold matter, and absent a dispute by Marborg, the Court deems the service by Marborg of the Marborg SI and the Marborg RFP, as a withdrawal of the special interrogatories and requests for production of documents and other things served by Marborg on November 26, 2025. (See Code Civ. Proc., § 2030.060, subds. (a), (c) [requiring that each set of interrogatories be numbered consecutively and each interrogatory be identified by number]; Code Civ. Proc., § 2031.030, subds. (a)(1), (c) [same re inspection demands].) As the Marborg SI and the Marborg RFP are, for all reasons discussed above, the ostensibly operative discovery to which the protective order motion is directed, to the extent that motion addresses, is directed to, or seeks any orders in regard to the special interrogatories or requests for production of documents and other things served by Marborg on November 26, 2025, that motion is, for all reasons discussed above, moot and will be denied on that basis."

The Marborg SI include interrogatory nos. 1 through 54, and a declaration for additional discovery by Marborg's counsel, Jonathan Semerjian (attorney Semerjian.) For reasons further discussed in the Order, the Court has stated its intention to grant the protective order motion as to Marborg SI nos. 1, 16 through 22, and 36 through 54; and to deny that motion as to Marborg SI nos. 2 through 15 and 30 through 35.

The Court also stated its intention, for all reasons discussed in the Order, to grant the protective order motion as to Marborg RFP nos. 3, 4, 11, 12 [misnumbered 3], 13 [misnumbered 4], 15, and 16; and to deny the motion as to Marborg RFP nos. 1, 2, 5, 7 through 10, 14 [misnumbered 54], 23 [misnumbered 27], 24 through 26, 31 through 33, 42, and 43.

As to Marborg SI nos. 23 [misnumbered 24] through 29, the Order states: "there exists some question as to whether, or to what extent, the discovery sought ... is relevant to the subject matter of this action, and whether those requests are reasonably calculated to lead to the discovery of admissible evidence...."

The Order further provides: "The Court's ruling herein is intended to provide guidance to the parties regarding the manner in which the Court intends to determine the protective order motion. Under the totality of the circumstances present here, the Court will continue the protective order motion to permit the parties an opportunity to further meet and confer as to the remaining Marborg SI and Marborg RFP at issue, in an effort to resolve the parties' disputes. The Court expects the parties to meet and confer fully and in good faith."

Pursuant to the Order, the Court continued the protective order motion to May 13; ordered the parties to meet and confer in accordance with the ruling set forth in the Order; and ordered the parties to, on or before April 29, submit joint or individual status reports setting forth, on a point-by-point basis as to each discovery request at issue, the matters discussed in the Order including which, if any, disputes have been resolved and what, if any, disputes remain.

On April 29, 2026, Plaintiff filed their status report, which is supported by a declaration of Plaintiff's counsel, R. Chris Kroes (attorney Kroes).

Attorney Kroes asserts that the parties met and conferred on April 15 and 16, 2026, and that Marborg's counsel, Medina Talebi (attorney Talebi), agreed to withdraw any discovery requests which are related to collateral sources, negligent hiring, Plaintiff's phone or phone records, Plaintiffs earnings and income, and social media, with the exception of those requests which are related to the vehicles in dispute. (Kroes Dec., ¶¶ 2-4 & exhibit A.) When attorney Kroes inquired of attorney Talebi if there were topics that counsel disagreed on related to the protective order, attorney Talebi advised "no". (Kroes Dec., ¶ 5.)

Plaintiff also submits a declaration of their counsel Linda Elias-Wheelock (attorney Wheelock), who assumed responsibility for this matter until attorney Kroes returns from out of the country in mid-May. (Wheelock Dec., ¶ 2.)

Attorney Wheelock states that on April 16, 2026, attorney Talebi sent a letter memorializing the conversation with attorney Kroes described above and Marborg's agreement to withdraw the Marborg SI and Marborg RFP which are related to collateral sources, negligent hiring, and Plaintiff's phone, phone records, earnings, income, and social media, with the exception of those requests which are related to the vehicles in dispute. (Wheelock Dec., ¶ 3 & exhibit B.) Included with that letter were amended versions of the Marborg SI and Marborg RFP, purportedly reflecting those withdrawals. (Ibid.) Based their review of the amended versions of the Marborg SI and Marborg RFP, attorney Wheelock asserts that Marborg has included several requests which are irrelevant or which violate Plaintiff's privacy rights. (Wheelock Dec., ¶ 4.)

On April 21, 2026, attorney Wheelock sent a meet and confer letter to attorney Talebi which sets forth Plaintiff's position as to the discovery in dispute. (Wheelock Dec., ¶ 4 & exhibit C.) On April 22, 2026, attorney Wheelock received a letter from attorney Talebi which includes revised versions of the Marborg SI and Marborg RFP, and which sets forth the reasons Marborg believes that certain requests remain appropriate. (Wheelock Dec., ¶ 5 & exhibit D.) Marborg agreed to withdraw Marborg RFP nos. 17 and 21, and to remove the term "payroll records" from Marborg RFP no. 42. (Wheelock Dec., ¶ 5.)

Attorney Wheelock states that they have reviewed the amended Marborg SI and Marborg RFP, and do not agree with Marborg's position on the remaining discovery in dispute. (Wheelock Dec., ¶ 6.) On April 24, 2026, attorney Wheelock sent a letter to Marborg's counsel stating that each side should file its own status report. (Wheelock Dec., ¶ 6 & exhibit E.)

In their status report, Plaintiff asserts that Marborg has agreed to limit the Marborg SI to 35 specially prepared interrogatories, and that Marborg SI nos. 30 through 35, 39, 40, and 47 through 54 remain in dispute. (Pl. Status Report at pp. 3 & 11-13.) Plaintiff also asserts that Marborg RFP nos. 6, 22, 23 [misnumbered 27], 31 through 33, 36 through 39, 42, and 43 remain in dispute. (Pl. Status Report at pp. 14-18.)

Marborg also filed a status report on April 29. In support, attorney Talebi provides the same or similar information regarding the parties' efforts to meet and confer in regard to their disputes. (Talebi Dec., ¶¶ 2-8.) Marborg asserts that it has agreed to withdraw Marborg SI nos. 1, 9 through 14, 16 through 22, 23 (incorrectly numbered as 24), and 24 through 29, in order to reduce the number of Marborg SI. (Marborg Status Report at p. 2.) Marborg further asserts that it has withdrawn Marborg RFP nos. 11, 12 (incorrectly numbered "3"), 13 (incorrectly numbered "4"), 14 through 17, 19, and 21. (Ibid.) The Marborg status report also shows that Marborg SI nos. 30 through 35, 39, 40, and 47 through 54; and Marborg RFP nos. 6, 18, 22, 23 (misnumbered 27), 31, 32, 33, 36, 37, 38, 39, 42, and 43 remain in dispute. (Marborg Status Report at pp. 3-6 & 6-11.)

Analysis

For all reasons discussed above, the present record reflects, without dispute, that Marborg has agreed to withdraw Marborg SI nos. 1, 9, 10, 11, 12, 13, 14, 16, 17, 18, 19, 20, 21, 22, 23, 24, 25, 26, 27, 28, and 29. The Court understands Marborg's agreement to withdraw those Marborg SI, as a concession that the motion has merit as those requests. For these and all further reasons discussed above and in the Order, the Court will grant the protective order motion as to Marborg SI nos. 1, 9 through 14, and 16 through 29. Because the withdrawal of those twenty-one special interrogatories by Marborg reduces the number of specially prepared interrogatories to less than 35, the request for an order limiting the Marborg SI to thirty-five specially prepared interrogatories is moot and will be denied on that basis.

The same reasoning and analysis apply to Marborg RFP nos. 11 through 17, 19, and 21. For all reasons discussed above, the Court will grant the motion as to those requests.

As to Marborg SI nos. 30 through 35, which remain in dispute, Plaintiff's status report advances additional or supplemental information and arguments as to those requests, which the Court did not authorize in its Order. Notwithstanding that the Order does not authorize the submission of supplemental briefing apart from the status reports described in the Order, the Court will consider the supplemental arguments contained in Plaintiff's status report. Those arguments do not persuade the Court to reconsider or change its intended ruling in regard to Marborg SI nos. 30 through 35. For these and all further reasons discussed above and in the Order, the Court will deny the motion as to Marborg SI nos. 30 through 35.

Marborg SI nos. 39, 40, and 47 through 54, which also remain in dispute, request that Plaintiff: state all facts supporting any contention that Plaintiff was "required to utilize the Mercedes Sprinter van as sleeping accommodations for [Plaintiff's] employment"; identify each person who can corroborate any claim that Plaintiff "regularly slept in the Mercedes Sprinter van as part of [Plaintiff's] employment the one-year period immediately preceding the [incident]"; identify each instance in which Plaintiff did not use the Mercedes Sprinter van for Plaintiff's employment for any period exceeding 7 days in duration with the twelve months immediately preceding the incident; identify communications exchanged with any "insurance carrier, auto repair facility, mechanic, or other person regarding the condition, use, or operability of the Mercedes Sprinter van and Lexus RX between January 1, 2025 and the present date[]"; identify documents "relating to any prior claims, insurance coverage, or accidents involving the Mercedes Sprinter van from the date of [Plaintiff's] acquisition of these vehicles" to the present date; identify documents "relating to any prior claims, insurance coverage, or accidents involving the Lexus RX from the date of [Plaintiff's] acquisition of these vehicles"; state whether "the Mercedes Sprinter van had any known mechanical problems, dead battery, or other conditions affecting their drivability or usability within 90 days prior to the [incident]", and to describe those conditions; and to state "whether the Lexus RX van had any known mechanical problems, dead battery, or other conditions affecting their drivability or usability within 90 days prior to the [incident]" and to describe those conditions. (Apr. 29, 2026, Kroes Dec., exhibit D1; see also Pl. Status Report at pp. 12-13; Marborg Status Report at pp. 4-6.)

As to Marborg SI nos. 39, 40, and 47 through 54, the Order states:

"The protective order motion does not dispute, and appears to concede, that Plaintiff seeks to recover in this action, losses sustained as a result of Plaintiff's inability to use the vehicles allegedly damaged as a result of the incident alleged in the complaint. (Motion at p. 6, ll. 4-6.) "For the breach of an obligation not arising from contract, the measure of damages, except where otherwise expressly provided by [the Civil] Code, is the amount which will compensate for all the detriment proximately caused thereby, whether it could have been anticipated or not." (Civ. Code, § 3333.) "It is established, under [Civil Code section 3333], that where a vehicle is injured by the wrongful act of another, the owner is entitled to recover for the damage done to the vehicle and also for the loss sustained by being deprived of its use during the time reasonably required for the making of repairs. [Citations.]" (Reynolds v. Bank of America National T. & S. Ass'n (1959) 53 Cal.2d 49, 50-51.)

"There is no fixed rule for the measure of tort damages under Civil Code section 3333. The measure that most appropriately compensates the injured party for the loss sustained should be adopted." (Santa Barbara Pistachio Ranch v. Chowchilla Water Dist. (2001) 88 Cal.App.4th 439, 446-447.)"

The Order further states:

"Plaintiff does not directly address whether, or expressly deny that, their loss of use claim includes losses sustained as a result of Plaintiff being unable to use their vehicle for work related activities or purposes. The protective order motion also fails to present any reasoned argument showing why any such losses may not be recovered by Plaintiff under the circumstances present here. Instead, Plaintiff contends that Marborg's contention is without evidentiary support, including as to whether any pleadings or discovery responses disclose any such claim by Plaintiff."

The Order also notes that "to the extent Plaintiff does not seek to recover in this action, losses arising from Plaintiff's inability to use of their vehicle for employment purposes, the protective order motion fails to explain why Plaintiff is not required to include that information in any verified response to the Marborg SI. (See Code Civ. Proc., § 2030.210, subd. (a) [setting forth

required contents of response].)”

The same reasoning and analysis apply. To the extent Plaintiff does not claim, or has disclaimed, any damages or losses arising from any inability of Plaintiff to use the damaged vehicles for employment purposes, Plaintiff fails to explain why they cannot, or are not required to, include that information in their responses to discovery. For these and all further reasons discussed above and in the Order, the Court will deny the motion as to Marborg SI nos. 39, 40, and 47.

As to Marborg SI nos. 48 through 54, Marborg contends that it is entitled to discover information regarding the condition of the vehicles at the time of the subject incident for the purpose of assessing whether any damages claimed by Plaintiff in these proceedings include any prior or preexisting damage or repairs to those vehicles. Plaintiff fails to explain why that information is not relevant to the subject matter of this litigation, or why any discovery of that information is not reasonably calculated to lead to the discovery of admissible evidence.

Though, for all reasons discussed above and in the Order, the same reasoning and analysis apply to Marborg SI nos. 48 through 54, the Court notes that Marborg SI nos. 49 and 50 encompass various documents dated from the day Plaintiff acquired the vehicles at issue. Considering that Marborg SI nos. 49 and 50 appear unlimited in their scope as to time and subject matter, Marborg fails to explain why those interrogatories are relevant to the subject matter of this litigation or are likely to lead to the discovery of admissible evidence. For these and all further reasons discussed above and in the Order, the Court will grant the protective order motion as to Marborg SI nos. 49 and 50. As Marborg SI nos. 48 and 51 through 54 appear limited in their scope as to subject matter and time, and for all further reasons discussed above and in the Order, the Court will deny the protective order as to Marborg SI nos. 48 and 51 through 54.

The status reports filed by the parties indicate or suggest that, apart from the matters discussed above, the parties have resolved their disputes as to Marborg SI nos. 2 through 8, 15, 36 through 38, and 41 through 46. As the protective order appears moot in regard to Marborg SI nos. 2 through 8, 15, 36 through 38, and 41 through 46, that motion will be denied on that basis as to those interrogatories.

The available information and evidence shows that the parties were unable to resolve their disputes as to Marborg RFP nos. 6, 18, 22, 23, 31 through 33, 36 through 39, 42, and 43. (Pl. Status Report at pp. 14-18; Marborg Status Report at pp. 6-11.) In the Order, the Court stated its intention to deny the motion as to Marborg RFP nos. 23, 31 through 33, 42 and 43, for the same or similar reasons further discussed above. The supplemental information and arguments advanced in Plaintiff's status report do not persuade the Court to reconsider or change its intended ruling as to those requests. For these and all further reasons discussed above and in the Order, the Court will deny the protective order motion as to Marborg RFP nos. 23, 31 through 33, 42 and 43.

Marborg RFP no. 18 requests the production of any documents identified in Plaintiff's response to the Marborg RFP. To the extent the Court will deny the protective order motion as to the Marborg SI described above, Plaintiff has failed to demonstrate good cause for a protective order as to Marborg RFP no. 18.

Marborg RFP no. 6 requests the production of documents regarding any policies of insurance in effect at the time of the incident, including “medical, health, life, ... disability and any other form of insurance....” (Marborg Status Report at p. 6.) As noted in the Order, “the undisputed subject matter of this action does not include physical or mental injuries sustained by Plaintiff as a result of the incident...” As stated in the Order, the Court found that Plaintiff's motion “is sufficient to show that discovery in regard to any personal injury sustained by Plaintiff is not relevant to the subject matter involved in this action.”

For all reasons discussed above and in the Order, to the extent Marborg RFP no. 6 seeks the production of medical, health, life, disability, or other similar forms of insurance, Plaintiff has demonstrated good cause for a protective order. Therefore, the Court will grant the protective order motion as to Marborg RFP no. 6, in part and to the extent that request requires the production of any policies of insurance apart from policies of insurance providing insurance coverage for the vehicles at issue at the time of the incident alleged in Plaintiff's complaint.

Marborg RFP no. 22 seeks the production of documents evidencing Plaintiff's license to operate a motor vehicle. The protective order motion fails to show why Plaintiff's license to operate a motor vehicle implicates any privacy concerns. Furthermore, to the extent Plaintiff claims any loss of use of the subject vehicles for employment purposes, there does not appear to exist, at this stage of the proceedings, good cause for a protective order as to Marborg RFP no. 22.

As to Marborg RFP nos. 36 and 37, those requests seek documents evidencing any liens, claims, repossessions, or other financial encumbrances involving Plaintiff's vehicles, dated January 1, 2024, to the present. (Marborg Status Report at p. 9.) The same or similar reasoning and analysis apply. For all reasons discussed above and in the Order, absent any reasoned legal or factual argument showing why the requests stated in Marborg RFP nos. 36 and 37 are relevant to the subject matter of this action, are reasonably calculated to lead to the discovery of admissible evidence, or are otherwise within the scope of permissible discovery notwithstanding any loss of use claim asserted by Plaintiff, the protective order motion is sufficient to show good cause for a protective order as to those RFP. For these and all further reasons discussed above and in the Order, the Court will grant the protective order motion as to Marborg RFP nos. 36 and 37.

Marborg RFP nos. 38 and 39 seek documents evidencing "storage, parking arrangements, parking fees, or vehicle storage facility contracts or agreements relating to" the vehicles at issue, from January 1, 2024. Considering the subject matter of these proceedings, the same reasoning and analysis apply. For the same reasons discussed above and in the Order, the Court will grant the motion as to Marborg RFP nos. 38 and 39.

The parties' status reports also show that the parties have resolved any remaining disputes as to Marborg RFP nos. 1 through 5, 7 through 17, 19 through 21, 24 through 30, 34, 35, 40 and 41. Therefore, the same reasoning and analysis apply. The protective order motion appears moot in regard to Marborg RFP nos. 1 through 5, 7 through 17, 19 through 21, 24 through 30, 34, 35, 40 and 41, and will be denied as moot as to those requests.

As to the request for an award of sanctions, the Order states: "The Court will determine Plaintiff's request for an award of sanctions at the continued hearing on the protective order motion."

Subject to exception not relevant here, the Court "shall impose a monetary sanction under Chapter 7 (commencing with [Code of Civil Procedure [s]ection 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order" unless the Court "finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2030.090, subd. (d), & § 2031.060, subd. (h).) Under the totality of the circumstances present here, and considering the Court's ruling herein, the Court finds that the imposition of sanctions would be unjust. For these reasons, the Court will deny Plaintiff's request for an award of monetary sanctions.

The Court has reviewed the proposed order lodged by Plaintiff and does not intend to sign it. The Court will require Plaintiff to submit, for the Court's signature, a corrected proposed order that conforms to the ruling set forth herein.

Judges

Judge Thomas Anderle

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